
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager *TJB*
DATE: May 18, 2022
SUBJECT: Professional Services Agreement between the City of Cheyenne and GLM Design Group for the for Dry Creek Master Plan Update and Drainage Code Review project

Three (3) Responsive Proposals were submitted under Request for Proposal (RFP) #8-22, for the Dry Creek Master Plan Update and Drainage Code Review project.

The proposals were received from:

1. Anderson Consulting Engineers, Fort Collins, CO.
2. GLM Design Group, Cheyenne, WY.
3. Y2 Consultants LLC, Cheyenne, WY.

Upon review of the three (3) proposals by the evaluation panel and subsequent in person interviews, the group has recommended acceptance of the proposal submitted by GLM Design Group, Cheyenne, Wyoming, for a project award amount of \$524,234.00 (Design Process & Construction Period Services).

Basis for award was based on a Qualifications based review and scoring of proposals. GLM Design Group submitted the highest scoring proposal, therefore their sealed pricing envelope was opened & negotiated.

Funding: 020-26-2618-42-43601 (1% Sales Tax 19-22 / Drainage)
\$332,803.15
Project #200078

025-21-2111-42-46542 (Wyoming Office of Homeland Security | FEMA)
\$191,430.85
Project #200078

Grand Total: \$524,234.00

City Contract No. _____

**PROFESSIONAL SERVICES AGREEMENT
FOR
DRY CREEK MASTER PLAN UPDATE AND DRAINAGE CODE REVIEW**

This Professional Services Agreement (“Agreement”) is made and entered into by and between the City of Cheyenne, located at **2101 O’Neil Avenue, Cheyenne, Wyoming 82001** (“City”), and **GLM Design Group**, located at **P.O. Box 20505, Cheyenne, Wyoming 82003** (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

The Consultant agrees to provide services for **Dry Creek Master Plan Update and Drainage Code Review project**, in accordance with **City of Cheyenne Request for Proposal (RFP) #8-22**, incorporated herein by reference, the Consultant’s submitted proposal, incorporated herein by reference, and **Exhibit B – Scope Modification**, incorporated herein by reference.

2. **TIME OF PERFORMANCE**

The work included in this Scope of Work will be completed by the following: **December 31, 2023**.

3. **COMPENSATION**

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of **Five Hundred Twenty-Four Thousand, Two Hundred Thirty-Four Dollars (\$524,234.00)** as stated in **Exhibit A – Fee Proposal**.

4. **CONSULTANT RESPONSIBILITY**

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. **COMPLIANCE WITH LAWS**

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.
15. TERM AND TERMINATION
The term of this Agreement shall be from date of execution to **December 31, 2023**. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. ENTIRETY OF AGREEMENT

This Agreement consisting of eleven (11) pages, Exhibit A, Fee Proposal, consisting of three (3) pages, Exhibit B, Scope Modification, consisting of one (1) page, Request for Proposal RFP 8-22, consisting of twenty-eight (28) pages, Addendum One (1), consisting of four (4) pages, and the Consultant's submitted proposal, consisting of fifty-four (54) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

25. SUPPLEMENTAL FEDERAL PROVISIONS & CLAUSES

Administration of Federal Funds. Contractor agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 C.F.R. Part 200, *et seq.*; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by the City of Cheyenne.

This Agreement has been prepared in accordance with 2 CFR 200.317-2 CFR 200.327 incorporated herein by reference.

§ 200.317 Procurements by states.

§ 200.318 General procurement standards.

§ 200.319 Competition.

§ 200.320 Methods of procurement to be followed.

§ 200.321 Contracting with small and minority businesses, women's business enterprises, and labor surplus area firms.

§ 200.322 Domestic preferences for procurements.

§ 200.323 Procurement of recovered materials.

§ 200.324 Contract cost and price.

§ 200.325 Federal awarding agency or pass-through entity review.

§ 200.326 Bonding requirements.

§ 200.327 Contract provisions.

APPENDIX II TO PART 200 - CONTRACT PROVISIONS FOR NON-FEDERAL ENTITY CONTRACTS UNDER FEDERAL AWARDS

In addition to other provisions required by the Federal agency or non-Federal entity, all contracts made by the non-Federal entity under the Federal award must contain provisions covering the following, as applicable.

(A) Contracts for more than the simplified acquisition threshold, which is the inflation adjusted amount determined by the Civilian Agency Acquisition Council and the Defense Acquisition Regulations Council (Councils) as authorized by [41 U.S.C. 1908](#), must address administrative, contractual, or legal remedies in instances where contractors violate or breach contract terms, and provide for such sanctions and penalties as appropriate.

(B) All contracts in excess of \$10,000 must address termination for cause and for convenience by the non-Federal entity including the manner by which it will be effected and the basis for settlement.

(G) Clean Air Act ([42 U.S.C. 7401-7671q](#).) and the Federal Water Pollution Control Act ([33 U.S.C. 1251-1387](#)), as amended - Contracts and subgrants of amounts in excess of \$150,000 must contain a provision that requires the non-Federal award to agree to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act ([42 U.S.C. 7401-7671q](#)) and the Federal Water Pollution Control Act as amended ([33 U.S.C. 1251-1387](#)). Violations must be reported to the Federal awarding agency and the Regional Office of the Environmental Protection Agency (EPA).

Environmental Policy Acts. Contractor agrees all activities under this Contract will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.

(H) Debarment and Suspension (Executive Orders 12549 and 12689) - A contract award (see [2 CFR 180.220](#)) must not be made to parties listed on the governmentwide exclusions in the System for Award Management (SAM), in accordance with the OMB guidelines at [2 CFR 180](#) that implement Executive Orders 12549 (3 CFR part 1986 Comp., p. 189) and 12689 (3 CFR part 1989 Comp., p. 235), "Debarment and Suspension." SAM Exclusions contains the names of parties debarred, suspended, or otherwise excluded by agencies, as well as parties declared ineligible under statutory or regulatory authority other than Executive Order 12549.

Suspension and Debarment. By signing this Contract, Contractor certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Contract suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), 44 CFR Part 17, or 2 CFR Part 180, or are on the debarred,

or otherwise ineligible, vendors lists maintained by the federal government. Further, Contractor agrees to notify Agency by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Contract.

(I) Byrd Anti-Lobbying Amendment ([31 U.S.C. 1352](#)) - Contractors that apply or bid for an award exceeding \$100,000 must file the required certification. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by [31 U.S.C. 1352](#). Each tier must also disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award. Such disclosures are forwarded from tier to tier up to the non-Federal award.

APPENDIX A, 44 C.F.R. PART 18 – CERTIFICATION REGARDING LOBBYING

Certification for Contracts, Grants, Loans, and Cooperative Agreements

The undersigned certifies, to the best of his or her knowledge and belief, that:

1. No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.
2. If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.
3. The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly. This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required certification shall be

subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.

The Contractor, **GLM Design Group**, certifies or affirms the truthfulness and accuracy of each statement of its certification and disclosure, if any. In addition, the Contractor understands and agrees that the provisions of 31 U.S.C. Chap. 38, Administrative Remedies for False Claims and Statements, apply to this certification and disclosure, if any.

Signature of Contractor's Authorized Official

Name and Title of Contractor's Authorized Official

Date

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kristina F. Jones, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____

DRY CREEK MASTER PLAN UPDATE AND DRAINAGE CODE REVIEW

Cheyenne, Wyoming
GLM Design Group - Work Plan and Professional Fees

May 15, 2022

DESCRIPTION OF SERVICES

GLM Design Group				DHM Design			ICON Engineering			Steil Surveying		
Principal Project Manager	Senior Associate GIS Specialist	Lead Design Engineer	Administrative	Principal Project Manager	Senior Associate	Designer	Principal Project Manager	Professional Engineer III	Engineer I	2-Man Crew	Review LS	Drafting
\$ 150	\$ 135	\$ 130	\$ 72	\$ 190	\$ 135	\$ 105	\$ 195	\$ 175	\$ 112	\$ 190	\$ 90	\$ 70

1.0 REVIEW, ACQUIRE, AND EVALUATE EXISTING PROJECT DATA:

Project Start Up:

- Review project areas in detail with Team

Project Meeting #1a: Project Kickoff Meeting:

- Kick-off meeting notes/follow-up coordination
- Assemble base map info & review background information
- Review FEMA Effective Hydraulic Model
- Review existing HEC-RAS models (Physical Map revision & LOMRs)
- Review recent stormwater improvements (Public Works & local developments)
- Obtain GIS data from City GIS Office
- Assemble baseline hydrology as available

8.00	8.00			8.00	8.00		4.00	4.00				
16.00	8.00	8.00		6.00	2.00	8.00	4.00	8.00				
		2.00				2.00						
24.00		24.00				16.00	4.00		8.00			
8.00		24.00					4.00	8.00	12.00			
16.00		20.00										
8.00		16.00					4.00		8.00			
	8.00											
		20.00										

1.1 a FIELD SURVEY AND INVENTORY:

- Channel survey and drone mapping (when available)
- Field data collection
- AASHTO infrastructure conditions assessment
- Off-channel survey and conditions assessment

										192.00	32.00	
		24.00										
20.00	16.00	90.00								48.00		
16.00	16.00	60.00								56.00	15.00	47.00

1.1b TOPOGRAPHIC SURVEY:

- Merging of topographic survey with City Lidar data

8.00	24.00											160.00
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1.1c GIS INVENTORY AND ASSESSMENT OF STORMWATER CHANNEL INFRASTRUCTURE:

- Merging of infrastructure and assessment data into City's ArcGIS system
- Project administration through Task 1 of the Study

4.00	40.00											
			16.00									

2.0 PUBLIC AND STAKEHOLDER INVOLVEMENT:

Project Area Outreach:

- Outreach to adjacent businesses, land owners and stakeholders to determine project desires along Dry Creek Drainage channel
- Document feedback and provide data matrix for decision making process

Project Meeting #2: Review of Public Feedback

- Meet with City Staff to review gathered info and steps moving forwards
- Meeting notes/follow-up coordination

24.00				24.00	24.00	24.00						
4.00		8.00				8.00						
6.00				3.00								
4.00				3.00								
		2.00										

2.1 COORDINATION WITH STAFF AND PROJECT STEERING COMMITTEE:

Initial Steering Committee Meeting #1b: Project Kickoff Meeting:

- Discussion of Goal Planning for project
- Review project areas in detail with Team
- Kick-off meeting notes/follow-up coordination

Quarterly Reports

8.00				4.00	4.00	4.00						
8.00				4.00	4.00							
4.00		2.00		2.00	2.00							
2.00	12.00											

2.2 JURISDICTIONAL MEETINGS:

- 5 jurisdictional meetings

10.00												
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- Organize and provide presentation materials for Jurisdictional Meetings

2.00		16.00											
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2.3 HYDROLOGY AND HYDRAULICS REVIEW:

- Review of City SWMM and HEC-RAS Models
- Model calibration
- Development of supplemental models
- Development of baseline existing conditions hydrologic model
- Development of Corrective Effective baseline hydraulic model
- Development of 2D models at select locations

16.00	32.00	24.00					8.00	28.00	24.00				
8.00	24.00	20.00						8.00	20.00				
	16.00	24.00						4.00	24.00				
16.00	24.00	48.00						4.00	32.00				
16.00	24.00	32.00					4.00	8.00	24.00				
2.00		4.00					4.00	24.00	40.00				

2.4 IDENTIFICATION OF CONSTRAINTS AND AREAS OF CONCERN:

- Identification of Life-Safety Hazards, Property Damage Risk, Infrastructure Issues
- Inaccuracies in the Effective model, Design criteria deficiencies
- Blockage assumptions
- Damage Analysis

8.00	8.00	24.00											
8.00		16.00											
8.00	4.00												
4.00	32.00	8.00											

2.5 CONCEPTUAL ALTERNATIVES:

Schematic Design of Project Areas:

- Preliminary conceptual design alternatives for each project area/reach
- Alternatives based upon preliminary coordination with staff and steering committee
- Up to (3) conceptual sketches of each project area/stretch
- Preliminary Benefit-Cost Analyses

Submittal: Preliminary Conceptual Design Alternatives

24.00	16.00	32.00		56.00	38.00	53.00			24.00				
16.00	40.00												
		3.00			1.00	3.00							

2.6 PRELIMINARY DESIGN ALTERNATIVE(S) DEVELOPMENT:

- Preliminary conceptual design alternatives refined
- Detailed Benefit-Cost analyses
- Preliminary mitigation cost estimates using WyDOT cost data

Submittal: Preliminary Design Alternatives

Project Meeting #3: Review of Alternatives - Prior to Open House #1

- Presentation of alternatives to City Staff and Project Stakeholders
- Ensure City Staff approval of alternatives prior to Open House #1

Open House Meeting Preparation

Public Open House #1:

- Prepare presentation image boards and handout materials
- Attend meeting, present project area/stretch alternative to the Public
- Flyers & press release preparation
- Provide meeting notes and follow up

Project Meeting #4: Review of Feedback from Open House #1

- Review of feedback gathered from Public Open House #1
- Receive direction from City Staff on desired path forward

16.00	12.00	24.00		12.00	8.00	12.00	4.00		16.00				
	24.00												
8.00		24.00											
		3.00			1.00	3.00							
6.00	6.00			6.00	6.00								
4.00		4.00		4.00	16.00	16.00							
6.00				6.00	6.00	6.00							
		2.00				2.00							
6.00				6.00	6.00								

2.7 SELECTED PLAN PHASE:

Draft Master Plan Design of Project Areas:

- Refined conceptual design alternatives for each project area/stretch
- Alternatives based upon direction from City Staff
- Refine each project area/stretch down to single (1) conceptual Master Plan
- Refined Benefit-Cost analyses

Scope Modification

- Provide detailed draft master plans of individual project destination areas - (4)
- Hand Rendered Plans
- 3D Renderings
- Renderings to be used to gain public support and assist with grant funding

Submittal: Refined Conceptual Design Alternatives

Project Meeting #5: Review of Refined Alternatives - Prior to Open House #2

- Presentation of refined alternatives to City Staff and Project Stakeholders
- Ensure City Staff approval of alternatives prior to Open House #2

Open House Meeting Preparation

Public Open House #2:

- Prepare presentation image boards and handout materials
- Attend meeting, present project area/stretch alternative to the Public
- Flyers & press release preparation
- Provide meeting notes and follow up

Project Meeting #6a: Review of Feedback from Open House #2

16.00	8.00	24.00		24.00	15.00	24.00	4.00		16.00				
8.00	24.00												
				64.00	12.00	32.00							
		3.00			1.00	3.00							
6.00				6.00	6.00								
4.00		16.00		4.00	16.00	16.00							
6.00				6.00	6.00	6.00							
		2.00				2.00							
6.00				6.00	6.00								

- Review of feedback gathered from Public Open House #2
- Receive direction from City Staff on desired path forward

2.8 DRAINAGE MASTER PLAN UPDATE REPORT:

Final Master Plan Design of Project Areas:

- Finalize each design alternative for each project area/stretch
 - Alternatives based upon direction from City Staff
- Provide detailed "Opinion of Estimated Costs" estimates for each project area/reach
- Provide recommended phasing options for overall Master Plan of Dry Creek Drainage
- Organize and provide presentation materials for Jurisdictional Meetings

Scope Modification

- Provide detailed final master plans of individual project destination areas - (4)
- Hand Rendered Plans
- 3D Renderings
- Renderings to be used to gain public support and assist with grant funding

Submittal: Final Master Plan Design Report

- Project administration through Task 2 of the Study

8.00	8.00	16.00		8.00	24.00	24.00	4.00		16.00			
3.00	8.00	16.00		3.00	32.00	24.00						
3.00				3.00								
2.00	24.00			2.00	24.00							
				48.00	12.00	32.00						
		3.00			1.00	3.00						
			16.00									

REGULATORY CODE EVALUATION:

3.0 REVIEW OF EXISTING UDC AND MUNICIPAL CODE:

- Review USDCM Criteria for appropriate use in Cheyenne
- Review storm drainage criteria from other communities

16.00		8.00					4.00	16.00				
8.00		8.00						8.00				

3.1.a 2014 UDC ARTICLE 3, SECTION 3.2 - DRAINAGE IMPACT STUDIES:

Project Meeting #6b: Review of appropriate critieria for adoption in Cheyenne

- Presentation of drainage impact study revisions to City Staff and Project Stakeholders

16.00	8.00	16.00					4.00	28.00				
4.00		2.00										

3.1.b CITY OF CHEYENNE MUNICIPAL CODE IN TITLE 13 RELATED TO DRAINAGE (CHAPTER 13.16 STORM SEWERS, CHAPTER 13.24 FLOODPLAIN AND SURFACE WATER MANAGEMENT):

- Review of Cheyenne Municipal Code
- Coordinate code modifications with City's MS4 Enforcement Ordinance as appropriate
- Establish code modifications for Right-of-way License Agreements

Project Meeting #6c: Review of appropriate municipal code modifications for Cheyenne

- Presentation of municipal code revisions to City Staff and Project Stakeholders
- Assist City staff with code adoptions through Governing Body

16.00		8.00										
4.00												
4.00		8.00										
6.00												

3.2 (2.1) COORDINATION WITH STAFF AND PROJECT STEERING COMMITTEE:

- Continuation od Task 2.1: Coordination with staff and project steering committee
- Up to (3) meetings with steering committee, staff, local engineering firms, WyDOT, developers, contractors, and other agencies identified by City
- Up to (5) additional virtual meetings with City staff and other project team members
- Project administration through Task 3 of the Study

6.00		6.00										
5.00		5.00										
			16.00									

Sub-Totals:	\$ 77,850.00	\$ 63,990.00	\$ 97,370.00	\$ 3,456.00	\$ 60,420.00	\$ 37,935.00	\$ 33,915.00	\$ 10,920.00	\$ 25,900.00	\$ 29,568.00	\$ 56,240.00	\$ 4,230.00	\$ 14,490.00
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Expenses (Travel, Mileage, Printing, etc.): \$ 2,650.00 \$ 2,650.00 \$ 2,650.00

Consultant Sub-Totals: \$245,316.00 \$134,920.00 \$69,038.00 \$74,960.00

Overall Project Total: \$524,234.00

Proposal Notes and Omissions

1. Development of existing conditions SWMM model & model calibration costs will be further negotiated upon initial review of City models
2. Our Benefit-Cost analyses factors in cost-effective assumptions for gathering minimum threshold elevations that will need to be discussed with City staff

Additional Services (if requested)

- Project Informational Website - Includes domain, hosting and updates throughout process
- Project area/reach 3D Presentation Renderings - Photorealistic Renderings



PROPOSED SCOPE MODIFICATIONS:

The GLM Design Group Team is proposing a scope modification to provide additional detailed draft master plans of four (4) individual project destination areas identified in the overall Dry Creek Master Drainage Planning effort. These additional individual draft master plans will include hand rendered plans of each site, 3D renderings, and additional renderings in support of public outreach/involvement and pursuit of outside project grant opportunities.

The additional scope is for a further refinement of select areas identified in the overall Dry Creek Master Drainage Planning efforts and to develop conceptual planning for future projects in the basin. This additional information will allow project stakeholders and the public to better weigh in on the project concepts being proposed.